Ki Seitzei 5783

פרשת כי תצא is the parsha with the most מצוות in it, each one of which deserves a lifetime of study. We're going to use two of them to explain an interesting thought, and that is that הקדוש ברוך הוא's חסד is manifest throughout all of ספר דברים. He has patience with us, He cares for us, and He yearns for our דביקות, for our coming close to Him. On the other hand, the precision and the exactitude of how הקדוש ברוך הוא rules the world is hidden between the lines. The famous pasuk coming up in a few weeks (32:4) הַצּוּר תָּמִים פָּעֳלוֹ כִּי כָל דְּרָכָיו מִשְׁפָּט, highlights that thought. But we can see it running throughout all of ספר דברים if we look for it carefully.

If we look in this week's parsha, two unrelated sections will emphasize this point. The pasuk says (23:21) לַנָּכְרִי תַּשִׁיךְ וּלְאָחִיךָ לֹא תַשִׁיךְ - the famous הלכה about ריבית. ריבית or נשך is the איסור in the Torah to charge another Yid interest if we borrow or lend money. However, the pasuk clearly says, right there, לַנָּכְרִי תַּשִׁיךְ וּלְאָחִיךָ לֹא תַשִׁיךְ - To a גוי, you can charge interest, but to your brother, you cannot charge interest. Throughout our history, I remember this so clearly in my ישיבה days, one of our teachers brought this up, that the גוים had this as a constant complaint against us. We were showing favoritism. We don't charge interest to a Yid, but to a goy we do charge interest. How would you answer that? He posed this question to the entire class. One of my friends, who I'm proud to say is still my friend, raised his hand and said the following straightforward and obvious answer. If ראובן lends שמעון money, he doesn't charge him interest. If שמעון lends ראובן money, he doesn't charge him interest. But if Johnny lends me money, he charges me interest. So if I lend Johnny money, I'm allowed to charge him interest. The goy charges interest. Go to any bank, they charge you interest. So we as Yidden are allowed to charge interest to the goy because that's what they do to us. We treat them in exactly the same way that they treat us. However, Hashem says, "Don't do that to your brother. To your brother, you don't charge interest." This just shows you this incredible, exact סברא and thought process that goes into each and every part of the Torah.

Now, I'm going to bring a totally different הלכה, which is at the beginning of the פרשה, and that is the הלכה about בֶּן הָאֲהוּבָה וּבֶן הַשְּׂנוּאָה. It's really where we learn the הלכה of פי שנים for a בכור. The בכור gets פי שנים. It doesn't matter if he's from the שנואה or the אהובה. Specifically, the Torah is telling us that if the שנואה child is the בכור, he gets פי שנים: (21:17) כִּי אֶת הַבְּכֹר בֶּן הַשְּׂנוּאָה יַכִּיר לָתֵת לוֹ פִּי שְׁנַיִם בְּכֹל אֲשֶׁר יִמָּצֵא לוֹ.

The sefer Torah Treasures brings in the name of the גר"א that this הלכה is two הלכות in one. A) That the בכור receives a double portion. B) That the בכור only gets that which his father has in his possession at the time of his passing. This is known as a מוחזק. אֲשֶׁר יִמָּצֵא לוֹ - that which he has. If something is coming to him in the future, there's no פי שנים on that incoming fund. That's called ראוי, that's coming to him. The בכור has to share those incoming funds equally with all of the other children.

How do we see this in the actual words of the הלכה of בכור? We see it from the word בכור itself. In this pasuk בכור is written in the shortened version. It's not ב כ ו ר. It's ב כ ר. Why? The numerical value of the letters ב כ ר, which we all know are two, twenty, and two hundred, are exactly double the letters that precede them: א י ק, one, ten, and a hundred respectively. But they are not double the letters that follow them. This is a רמז to the הלכה that a בכור receives a double portion only from that which was there before, which was in his father's possession before he passed away, preceding his death, but not from the income that comes after his death.

That is so beautiful, that's classic וילנא גאון. The genius of the גאון to be able to see that in this הלכה is really quite astonishing and breathtaking. בעזרת השם, we should all be מכוון to the Torah's thoughts, we should keep on striving to work harder to reach such a level. If we strive for it, maybe we'll get a little bit closer to what he was able to accomplish.

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